

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**202200572832CUPA: Ruiz Flores vs. BC Rincon Construction
09/02/2026 in Department 43
Motion to Compel Compliance with Deposition Subpoena for Production of Business
Records to Bal S. Grewal**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants BC Rincon Construction, Inc. and Osvaldo Dionicio's Motion to Compel Compliance with Deposition Subpoena for Production of Records and Request for Monetary Sanctions in the Amount of \$1,100

Tentative Ruling: Defendants BC Rincon Construction, Inc. and Osvaldo Dionicio's Motion to Compel Compliance with Deposition Subpoena for Production of Records and Request for Monetary Sanctions in the Amount of \$1,100 against Dr. Bal S. Grewal is DENIED.

California Rules of Court, rule 3.1346 clearly requires that written notice of the moving papers be personally served on a nonparty deponent unless the nonparty explicitly agrees to accept alternative service. The proof of service attached to the motion lists only Jeffrey Galen (Plaintiff's counsel) as having been served (by electronic mail). The service list does state that Dr. Grewal was served with the motion, by personal service or otherwise. Accordingly, the motion is denied for failure to establish service of the motion on the interested third party who is the subject of the subpoena.

Furthermore, the motion fails to include a required declaration regarding efforts to meet and confer in an effort to informally resolve the issues raised by the motion. (Code Civ. Proc., § 2016.040, 2025.480, subd. (b).) Failure to meet and confer in person, by telephone or by videoconference may be grounds for monetary sanctions. (Code Civ. Proc., § 2023.010, 2023.020.) Nor does the notice of motion state who sanctions are sought against which is required before the Court may issue a monetary sanction.

Moving party is ordered to serve notice of the Court's ruling.